

		(Statute of Limitations) is overruled. An affirmative defense based on the failure to state facts or statute of limitations does not require that facts be pleaded in support thereof. (See Code Civ. Proc., §§ 430.801, 458; see also 5 Witkin, Cal. Proc. 5th (2008) Pleading, § 1082, p. 515 [an affirmative defense of failure to state contradicts the essential allegations of the complaint and does not raise new matters, but merely denies them in affirmative form].) Defendants have failed to allege any facts in support of the remaining affirmative defenses. Accordingly, the demurrer to these affirmative defenses is sustained. In light of this ruling, Plaintiff's request to strike the affirmative defenses is denied as moot. Should Defendants wish to file a First Amended Answer to address the issues discussed above, Defendants shall do so by May 29, 2026. Plaintiff shall give notice of this ruling. <u>Case Management Conference</u> The Case Management Conference is continued to July 16, 2026, at 9:00 a.m. in this department. Plaintiff to give notice.
8	SPCB Ventures, Inc. v. Senoa Holdings, Inc.	Defendant Senoa Holding LLC, erroneously sued as Senoa Holdings, Inc.'s demurrer to Plaintiff SPCB Ventures, Inc.'s complaint is OVERRULED. Defendants Anthony Perkins and Matsuki Perkins' demurrer to SPCB Ventures, Inc.'s complaint is OVERRULED as to the 1st, 2nd, 4th, 5th, and 6th causes of action for fraud and violation of Bus. & Prof. Code § 17200 <i>et seq.</i>, and SUSTAINED as to the 3rd and 7th causes of action for breach of contract and breach of covenant of good faith and fair dealing. Plaintiff is granted 20 days leave to amend. <u>General standard</u> A demurrer only tests the sufficiency of the pleadings. (<i>See Satyadi v. West Contra Costa Healthcare District</i> (2014) 232 Cal.App.4th 1022, 1028 [in analyzing a demurrer, the court looks only to the face of the pleadings and to matters judicially noticeable and not to the evidence or other extrinsic matters]). In reviewing the propriety of the sustaining of a demurrer, the "court gives the complaint a reasonable interpretation, and treats the demurrer as admitting all material facts properly pleaded. [Citations.] The court does not, however, assume the truth of contentions, deductions or conclusions of law. [Citation.] The judgment must be affirmed 'if any one of the several grounds of demurrer is well taken. [Citations.]' [Citation.] However, it is error for a trial court to sustain a demurrer when the plaintiff has stated a cause of action under any possible legal theory. [Citation.] And it is an abuse of discretion to sustain a demurrer

		without leave to amend if the plaintiff shows there is a reasonable possibility any defect identified by the defendant can be cured by amendment.” (<i>Hale v. Sharp Healthcare</i> (2010) 183 Cal.App.4th 1373, 1379 [citing <i>Aubry v. Tri-City Hospital Dist.</i> (1992) 2 Cal.4th 962, 967].). A court will not consider facts that have not been alleged in the complaint unless they may be reasonably inferred from the matters alleged or are proper subjects of judicial notice. (<i>Hall v. Great W. Bank</i> (1991) 231 Cal.App.3d 713, 718 fn.7.) Here, Defendants Anthony Perkins, Matsuki Perkins, and Senoa Holding demurrer to the four causes of action for fraud, the breach of contract cause of action, the violation of Bus. & Prof. Code § 17200 cause of action and the bad faith cause of action. <u>Violation of Cal. R. Ct., rule 3.1113</u> As a preliminary matter, Plaintiff’s Opposition violates Cal. R. Ct., rule 3.1113, subd. (d), which provides that: “Except in a summary judgment or summary adjudication motion, no opening or responding memorandum may exceed 15 pages.” Plaintiff’s Opposition memorandum starts on page 5 and goes to page 26. It exceeds the limit by 7 pages. According to Cal. R. Ct, rule 3.1113, subd. (g), “A memorandum that exceeds the page limits of these rules must be filed and considered in the same manner as a late-filed paper.” The court will consider the merits of the first 15 pages of the Opposition brief (through page 19). <u>Alter Ego</u> First, the individual defendants, Anthony Perkins and Matsuki Perkins, contend that the alter ego allegations fail. Plaintiff alleges the following in support of its alter ego theory of liability: “At all times relevant hereto, Defendant Senoa was the alter ego of Defendants Anthony and Matsuki, and there exists, and at all times herein mentioned has existed, a unity of interest and ownership between Defendants such that any separateness between them has ceased to exist in that Defendants Anthony and Matsuki completely controlled, dominated, managed, and operated Defendant Senoa to suit their convenience.” (Compl., ¶ 7). “At all times relevant thereto, Defendant Senoa was not only influenced and governed by Defendants Anthony and Matsuki, but there was such a unity of interest and ownership that the individuality, or separateness, of Senoa and Anthony and Matsuki have ceased, and that the facts are such that an adherence to the fiction of the separate existence of these entities would, under the particular circumstances, sanction a fraud or promote injustice.” (Compl., ¶ 8).
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